

HOUSE No. 1258**The Commonwealth of Massachusetts**

PRESENTED BY:

Paul McMurtry and Michael F. Rush*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act requiring coverage of medically necessary oral and dental care for head and neck cancer survivor.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/15/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>2/10/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/25/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/27/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/27/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/12/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/17/2025</i>
<i>John H. Rogers</i>	<i>12th Norfolk</i>	<i>3/23/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/2/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>4/2/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>4/3/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>4/3/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>4/10/2025</i>
<i>Barry R. Finegold</i>	<i>Second Essex and Middlesex</i>	<i>4/16/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>4/30/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>6/4/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>6/4/2025</i>

<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>6/20/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>7/31/2025</i>

HOUSE No. 1258

By Representative McMurtry of Dedham and Senator Rush, a joint petition (accompanied by bill, House, No. 1258) of Paul McMurtry, David F. DeCoste and others relative to coverage of medically necessary oral and dental care for head and neck cancer survivors. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring coverage of medically necessary oral and dental care for head and neck cancer survivor.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws is hereby amended by inserting after
2 section 17O, as inserted by chapter 233 of the acts 2016, the following section:-

3 Section 17P. Any coverage offered by the commission to an active or retired employee of
4 the commonwealth insured under the group insurance commission shall provide coverage for:

5 (a) necessary pre-cancer dental care, including preventative and restorative treatment to
6 the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary
7 dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss
8 in enrollees.

9 (b) dental care that is required prior to the commencement of treatment for head and neck
10 cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton
11 therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer

treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

(f) patient education, medical devices, prostheses, obturators, dental implants, rehabilitative services necessary to restore, maintain, or improve, the whole or partial function related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and to

approximate the normal appearance of any abnormal structures that is affected by a head and neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 2. Chapter 118E of the General Laws is hereby amended by inserting after section 10J, as inserted by chapter 233 of the acts 2016, the following section:-

Section 10K. The division shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

(f) patient education, medical devices, prostheses, obturators, dental implants, rehabilitative services necessary to restore, maintain, or improve, the whole or partial function related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and to

approximate the normal appearance of any abnormal structures that is affected by a head and neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 3. Chapter 175 of the General Laws is hereby amended by inserting after section 47II, as inserted by chapter 233 of the acts 2016, the following section:-

Section 47JJ. A policy, contract, agreement, plan or certificate of insurance issued, delivered or renewed within the commonwealth that provides medical expense coverage shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

(f) patient education, medical devices, prostheses, obturators, dental implants, rehabilitative services necessary to restore, maintain, or improve, the whole or partial function related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and to approximate the normal appearance of any abnormal structures that is affected by a head and neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8KK, as inserted by chapter 233 of the acts 2016, the following section:-

Section 8LL. A contract between a subscriber and the corporation under an individual or group hospital service plan that is delivered, issued or renewed within the commonwealth shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

(f) patient education, medical devices, prostheses, obturators, dental implants, rehabilitative services necessary to restore, maintain, or improve, the whole or partial function related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and to approximate the normal appearance of any abnormal structures that is affected by a head and neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after section 4KK, as inserted by chapter 233 of the acts 2016, the following section:-

Section 4LL. A subscription certificate under an individual or group medical service agreement delivered, issued or renewed within the commonwealth shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

(f) patient education, medical devices, prostheses, obturators, dental implants, rehabilitative services necessary to restore, maintain, or improve, the whole or partial function related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and to approximate the normal appearance of any abnormal structures that is affected by a head and neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting from the treatment.

(g) restorative and rehabilitative care including but not limited to: medications, restoration procedures, and other medical interventions required to address impairments resulting from head and neck cancer or its treatment.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4CC, as inserted by chapter 233 of the acts 2016, the following section:-

Section 4DD. An individual or group health maintenance contract shall provide coverage for:

(a) necessary pre-cancer dental care, including preventative and restorative treatment to the hard and soft tissues of the oral cavity, fluoride treatments and trays, and medically necessary dental procedures, to reduce or eliminate the risk of infection or to treat tooth decay or tooth loss in enrollees.

(b) dental care that is required prior to the commencement of treatment for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(c) post cancer necessary dental care, including preventative dental prophylaxis', scaling and root planing, quarterly cleanings, bi-annual assessments by a periodontist, fluoride treatments including trays, and medically necessary dental procedures to reduce or eliminate the risk of infection; or to treat tooth loss or decay directly or indirectly caused by head and neck cancer treatment.

(d) dental procedures required as a result of treatments for head and neck cancer including, but not limited to, chemotherapy, immunotherapy, biological therapy, proton therapy, and radiation therapy.

(e) laboratory assessments, medications, treatments, evaluations, examinations, and rehabilitation necessary for head and neck cancer treatment and the restoration of function.

176 (f) patient education, medical devices, prostheses, obturators, dental implants,
177 rehabilitative services necessary to restore, maintain, or improve, the whole or partial function
178 related to eating, breathing, voice, speech, quality of life, social functioning and swallowing; and
179 to approximate the normal appearance of any abnormal structures that is affected by a head and
180 neck cancer diagnosis and/or the treatment of head and neck cancer, or the side effects resulting
181 from the treatment.

182 (g) restorative and rehabilitative care including but not limited to: medications,
183 restoration procedures, and other medical interventions required to address impairments resulting
184 from head and neck cancer or its treatment.